

SYNTHETIC APPELLATE DOCKET — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

APPELLANT DOCKETING STATEMENT

Case identification and jurisdiction

Filed February 3, 2026.

Appellant Leora Benton submits this statement in No. SYN-CA4-26-CV-4101. The appeal arises from Leora Benton v. Blue Cedar Compliance, Inc., Civil Action No. SYN-EDVA-25-CV-0412, in the United States District Court for the Eastern District of Virginia, Richmond Division. The district court entered a memorandum opinion and final judgment disposing of the sole Title VII retaliation claim on December 19, 2025. JA236–JA249. Benton filed her notice of appeal on January 16, 2026. JA250–JA252.

The district court had federal-question jurisdiction over the claim under 28 U.S.C. § 1331 and Title VII. This court has jurisdiction under 28 U.S.C. § 1291 because the December 19 judgment resolved the only claim and closed the action. The notice was filed twenty-eight days after entry of judgment. No post-judgment motion altered the time to appeal. No party is the United States, a United States agency, or a federal officer sued in an official capacity.

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Nature and procedural history

Benton alleges that Blue Cedar selected her for a March 2025 reduction in force because she had opposed what she described as sex-based allocation of high-visibility audit work and had filed an EEOC charge. Blue Cedar denied retaliation and asserted that a genuine savings target and coverage judgments caused the selection. After discovery, Blue Cedar moved for summary judgment. The district court granted the motion on the admitted record, concluding that Benton had not produced evidence permitting a reasonable finding of pretext and but-for causation.

Before deciding summary judgment, the district court excluded a two-page declaration from Tessa Wynn insofar as it introduced a materially new protected-activity subject after the discovery and supplementation deadlines. JA194–JA195, JA232–JA235. The court preserved Wynn's timely disclosed comparator testimony and did not apply a sham-affidavit rule. Benton challenges both the narrow Rule 37 exclusion and the summary-judgment ruling. The certified record includes the declaration and the exclusion proceedings so that this court can review the evidentiary ruling without treating the excluded subject as merits evidence.

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Issues expected to be presented

First, whether the district court abused its discretion under Rules 26 and 37 by excluding the late Wynn declaration after counsel learned the new subject on October 15, 2025, did not supplement by the October 17 cutoff, first served the declaration on November 4, and used it with the November 10 summary-judgment opposition. Benton expects to address the disclosed subjects, the degree of surprise, possible cure, schedule disruption, importance, and counsel's explanation.

Second, whether the admitted record, viewed in Benton's favor, permits a reasonable factfinder to find that retaliation was a but-for cause of her selection. The evidence includes Pike's knowledge, the six-week interval, Benton's 84-to-68 score change, retained-manager exceptions, alternatives that reached the savings target while retaining Benton, redistribution of her functions, and the sequence of explanations. Benton seeks affirmance only of the record boundary needed to review the exclusion issue, vacatur of summary judgment, and remand for proceedings on the admitted evidence. Blue Cedar is expected to defend both rulings.

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Record, related matters, and certification

The district clerk certified a thirty-seven-document record totaling 262 pages, labeled JA1 through JA262. Appellant is not aware of a missing district filing. The record contains the operative pleadings, administrative-exhaustion materials, discovery exchanges, business records, seven deposition transcripts, the summary-judgment submissions, the Wynn declaration, the motion and opposition concerning exclusion, the exclusion order, the merits opinion, judgment, notice of appeal, and record certificate. Appellant does not request confidential treatment for any item.

There is no related appeal, prior appeal, bankruptcy proceeding, or pending state action known to appellant. The parties have not agreed to mediation, although appellant will participate if the court directs it. Counsel certifies that this statement was electronically filed and served on counsel for Blue Cedar on February 3, 2026. Counsel further certifies that the statement identifies the presently anticipated issues without limiting the court's authority to determine its own jurisdiction or the lawful scope of review.